

2025 LEASE AGREEMENT

This Agreement, dated September 5, 2025, by and between an individual known as Rebekah R. Cleckler of 16A El Conejo Trail, Wimberley, Texas, 78676, hereinafter known as the "Landlord",

AND

An individual known as Jennifer Koch, hereinafter known as the "Tenant", agree to the following:

OCCUPANT(S): The Premises is to be occupied strictly as a residential dwelling with only the Tenant(s) mentioned above as the Occupant(s).

OFFER TO RENT: The Landlord hereby rents to the Tenant(s), subject to the following terms and conditions of this Agreement, Apartment on Owner Occupied property, with the address of 16B El Conejo Trail, Wimberley, Texas, 78676, consisting of 1 bathroom(s) and 1 bedroom(s), hereinafter known as the "Premises". The Landlord may also use the address for notices sent to the Tenant(s).

PURPOSE: The Tenant(s) and any Occupant(s) may only use the Premises as a residential dwelling. It may not be used for storage, manufacturing of any type of food or product, professional service(s), or for any commercial use unless otherwise stated in this Agreement.

FURNISHINGS: The Premises is not furnished.

APPLIANCES: The Landlord shall provide the following appliances:

Air Conditioner(s), Dishwasher, Hot Water Heater, HVAC, Oven, Refrigerator, Stove, and all other appliances to be provided by the Tenant(s). Any damage to the Landlord's appliances shall be the liability of the Tenant(s), reasonable wear-and-tear excepted, to be billed directly or less the Security Deposit.

LEASE TERM: This Agreement shall be a fixed-period arrangement beginning on October 1, 2025 and ending on September 30, 2026 with the Tenant(s) having the option to continue to occupy the Premises under the same terms and conditions of this Agreement under a Month-to-Month arrangement (Tenancy at Will) or renew the lease for one year with either the Landlord or Tenant having the option to cancel the tenancy at the end of the term with at least thirty (30) days' notice or the minimum time-period set by the State, whichever is shorter. For the Tenant to continue under Month-to-Month tenancy at the expiration of the Lease Term, the Landlord must be notified within sixty (60) days before the end of the Lease Term. Hereinafter known as the "Lease Term."

RENT: Tenant(s) shall pay the Landlord in equal monthly installments of \$1,320.00 (US Dollars) hereinafter known as the "Rent". The Rent will be due on the First (1st) of every month and be paid via the following instructions:

- TurboTenant will send invoice *at time of payment* due on the 1st of each month.
- Tenant will pay by check directly to the Landlord.
- Landlord will record payment as received in the TurboTenant app.

NON-SUFFICIENT FUNDS (NSF)

CHECKS: If the Tenant(s) attempts to pay the rent with a check that is not honored or an electronic transaction (ACH) due to insufficient funds (NSF) there will be a \$45.00 fee assessed.

LATE FEE: If rent is not paid on the due date, there shall be a late fee assessed by the Landlord in the amount of:

\$45 after the 3rd day plus \$5 per day thereafter. The late fee is to occur after the 3rd Day rent is due.

FIRST (1ST) MONTH'S RENT: First (1st) month's rent shall be due by the Tenant(s) upon the execution of this Agreement.

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PRE-PAYMENT: The Landlord shall not require any pre-payment of rent by the Tenant(s).

PRORATION PERIOD: ~~The Tenant(s) will not move into the Premises before the start of the Lease Term. However, if earlier move-in is requested, a prorated rent of \$30.50 per day will be assessed and payable before move-in.~~

SECURITY DEPOSIT: A Security Deposit in the amount of \$1,400.00 (US Dollars) secured from the Tenant(s) at the execution of ~~this~~ *original* Agreement to the Landlord for the faithful performance of all the terms and conditions. The Security Deposit is to be returned to the Tenant(s) within 30 days after this Agreement has terminated, less any damage charges and without interest. This Security Deposit shall not be credited towards rent. The move-out date in your notice must be the last day of the month. If move out is earlier and the premises are re-rented prior to the end of the month, the days redeemed by rental occupancy post-move-out will be reimbursed at pro-rata.

POSSESSION: Tenant(s) examined the condition of the Premises upon execution of lease dated September 04, 2024, and by taking possession acknowledges that they have accepted the Premises in good order and in its then current condition except as herein otherwise stated.

ACCESS: Upon the beginning of the Lease Term, the Landlord gives access to the Tenant(s) in the form of 2 (two) sets of keys to enter the Premises. Duplicate copies of the access provided may only be authorized under the consent of the Landlord and, if any replacements are needed, the Landlord may provide them for a fee. At the end of this Agreement all access provided to the Tenant(s) shall be returned to the Landlord or a fee will be charged to the Tenant(s) or the fee will be subtracted from the Security Deposit.

Periodic INSPECTION: The Tenant(s) shall allow Landlord entrance to perform an

inspection within the Premises for structural integrity or damage at least every six (6) months.

SUBLETTING: The Tenant(s) shall not have the right to sub-let the Premises or any part thereof without the prior written consent of the Landlord. If consent is granted by the Landlord, the Tenant(s) will be responsible for all actions and liabilities of the Sublessee including but not limited to: damage to the Premises, non-payment of rent, and any eviction process (In the event of an eviction the Tenant(s) shall be responsible for all court filing fee(s), representation, and any other fee(s) associated with removing the Sublessee). The consent by the Landlord to one sub-let shall not be deemed to be consent to any subsequent subletting.

ABANDONMENT: If the Tenant(s) vacates or abandons the property for a time-period that is the minimum set by State law or seven (7) days, whichever is less, the Landlord shall have the right to terminate this Agreement immediately and remove all belongings including any personal property off of the Premises. If the Tenant(s) vacates or abandons the property, the Landlord shall immediately have the right to terminate this Agreement.

ASSIGNMENT: Tenant(s) shall not assign this Lease to any other party.

PARKING: The Landlord shall provide the Tenant(s) access to the driveway associated with the Unit.

The Landlord shall not charge a fee for the driveway access and use. The Parking Space(s) can be described as: Driveway. Additional parking is available on street in front of Unit.

RIGHT OF ENTRY: The Landlord shall have the right to enter the Premises during normal working hours by providing notice in accordance with the minimum State requirement in order for inspection, make necessary repairs, alterations or improvements, to supply services as agreed or for any reasonable purpose. The Landlord may exhibit the Premises to

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prospective purchasers, mortgagees, or lessees upon reasonable notice.

UTILITIES AND SERVICES: Tenant may use utilities only for normal household purposes.

The Landlord agrees to provide the following utilities and services:

Lawn Care, Water, Wastewater.

Wastewater and Washer water are processed by two separate septic systems onsite. *Septic System* refers to "Black Water" wastewater and includes Kitchen and Bathroom sinks, Toilet, Tub/Shower. *Graywater septic system*, is in an underground gravel pit separate from the wastewater septic system, to process Washing-machine water.

Tenant agrees to abide by common practices in the use of Septic Systems. Misuse of **common Septic System practices, as delineated in ADDITIONAL TERMS AND CONDITIONS, by the Tenant, which result in service calls or other damages, will be charged against the tenant.**

All other utilities and services to be the responsibility of the Tenant(s).

1. Electric Service for 16B El Conejo Trail, Wimberley, TX 78676 must be connected in Tenant's name by move-in date. Electric Service is provided by:

Pedernales Electric Cooperative Inc.
P.O. Box 1
Johnson City, TX 78636-0001
<https://mypec.com/>
888-554-4732

Tenant must notify provider of move-out date so meter can be timely read. If Tenant delays getting it turned on in Tenant's name by Lease's start date or cause it to be transferred back into Landlord's name before Tenant surrenders or abandons the Unit, Tenant will be liable for a \$50 charge (not to exceed \$50 per billing period),

plus the actual or estimated cost of the utilities used while the utility should have been billed to Tenant.

Failure to transfer service back to Landlord by move-out date does not infer responsibility by Landlord toward any reimbursement to Tenant for subsequent electrical usage.

2. Internet, TV & Landline is provided by Spectrum: Get help ordering Spectrum services like Internet, Mobile, TV and Voice by calling 855-860-9068 Monday-Sunday, 7AM-2AM ET.

MAINTENANCE, REPAIRS, OR

ALTERATIONS: The Tenant(s) shall, at their own expense and at all times, maintain premises in a clean and sanitary manner, and shall surrender the same at termination hereof, in as good condition as received, normal wear and tear excepted. The Tenant(s) may not make any alterations to the leased premises without the consent in writing of the Landlord. The Landlord shall be responsible for repairs to the interior and exterior of the building. The Landlord will check all battery-operated smoke detectors when the Tenant(s) moves into the premises. It is the responsibility of the Tenant(s) to perform a cursory test for smoke detectors. A monthly "cursory" inspection may be required for all fire extinguishers to make sure they are fully charged. Tenant may not disable smoke alarms.

EARLY TERMINATION: The Tenant(s) may not be able to cancel this Agreement unless the Tenant is a victim of Domestic Violence, in such case, the Tenant may be able to cancel in accordance with any local, state, or federal laws.

PETS: Any pets hereinafter will be at the sole discretion on the Landlord.

NOISE/WASTE: The Tenant(s) agrees not to commit waste on the premises, maintain, or permit to be maintained, a nuisance thereon, or use, or permit the premises to be used, in an unlawful manner. The Tenant(s) further agrees

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to abide by any and all local, county, and State noise ordinances.

Furthermore, Tenant agrees to refrain from hanging TV on common wall(s) and to maintain TV and stereo noise and reverberance from "bleeding" into the adjacent unit.

GUESTS: There shall be no other persons living on the Premises other than the Tenant(s) and any Occupant(s). Guests of the Tenant(s) are allowed for periods not lasting for more than 72 hours with total of 15 nights/year unless otherwise approved by the Landlord.

SMOKING POLICY: Smoking on the Premises is permitted but only in the following areas: Outside

COMPLIANCE WITH LAW: The Tenant(s) agrees that during the term of the Agreement, to promptly comply with any present and future laws, ordinances, orders, rules, regulations, and requirements of the Federal, State, County, City, and Municipal government or any of their departments, bureaus, boards, commissions and officials thereof with respect to the premises, or the use or occupancy thereof, whether said compliance shall be ordered or directed to or against the Tenant(s), the Landlord, or both.

DEFAULT: If the Tenant(s) fails to comply with any of the financial or material provisions of this Agreement, or of any present rules and regulations or any that may be hereafter prescribed by the Landlord, or materially fails to comply with any duties imposed on the Tenant(s) by statute or State laws, within the time period after delivery of written notice by the Landlord specifying the non-compliance and indicating the intention of the Landlord to terminate the Agreement by reason thereof, the Landlord may terminate this Agreement. If the Tenant(s) fails to pay rent when due and the default continues for the time-period specified in the written notice thereafter, the Landlord may, at their option, declare the entire balance (compiling all months applicable to this Agreement) of rent payable hereunder to be

immediately due and payable and may exercise any and all rights and remedies available to the Landlord at law or in equity and may immediately terminate this Agreement.

The Tenant(s) will be in default if: (a) Tenant(s) does not pay rent or other amounts that are owed in accordance with respective State laws; (b) Tenant(s), their guests, or the Occupant(s) violate this Agreement, rules, or fire, safety, health, or criminal laws, regardless of whether arrest or conviction occurs; (c) Tenant(s) abandons the Premises; (d) Tenant(s) gives incorrect or false information in the rental application; (e) Tenant(s), or any Occupant(s) is arrested, convicted, or given deferred adjudication for a criminal offense involving actual or potential physical harm to a person.

MULTIPLE TENANT(S) OR

OCCUPANT(S): Each individual that is considered a Tenant(s) is jointly and individually liable for all of this Agreement's obligations, including but not limited to rent monies. If any Tenant(s), guest, or Occupant(s) violates this Agreement, the Tenant(s) is considered to have violated this Agreement. Landlord's requests and notices to the Tenant(s) or any of the Occupant(s) of legal age constitutes notice to the Tenant(s). Notices and requests from the Tenant(s) or any one of the Occupant(s) (including repair requests and entry permissions) constitutes notice from the Tenant(s). In eviction suits, the Tenant(s) is considered the agent of the Premise for the service of process.

DISPUTES: If a dispute arises during or after the term of this Agreement between the Landlord and Tenant(s), they shall agree to hold negotiations amongst themselves, in "good faith", before any litigation.

SEVERABILITY: If any provision of this Agreement or the application thereof shall, for any reason and to any extent, be invalid or unenforceable, neither the remainder of this Agreement nor the application of the provision to other persons, entities or circumstances shall

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be affected thereby, but instead shall be enforced to the maximum extent permitted by law.

SURRENDER OF PREMISES: The Tenant(s) has surrendered the Premises when (a) the move-out date has passed and no one is living in the Premise within the Landlord's reasonable judgment; or (b) Access to the Premise have been turned in to Landlord – whichever comes first. Upon the expiration of the term hereof, the Tenant(s) shall surrender the Premise in better or equal condition as it were at the commencement of this Agreement, reasonable use, wear and tear thereof, and damages by the elements excepted.

RETALIATION: The Landlord is prohibited from making any type of retaliatory acts against the Tenant(s) including but not limited to restricting access to the Premises, decreasing or cancelling services or utilities, failure to repair appliances or fixtures, or any other type of act that could be considered unjustified.

WAIVER: A Waiver by the Landlord for a breach of any covenant or duty by the Tenant(s), under this Agreement is not a waiver for a breach of any other covenant or duty by the Tenant(s), or of any subsequent breach of the same covenant or duty. No provision of this Agreement shall be considered waived unless such a waiver shall be expressed in writing as a formal amendment to this Agreement and executed by the Tenant(s) and Landlord.

HAZARDOUS MATERIALS: The Tenant(s) agrees to not possess any type of personal property that could be considered a fire hazard such as a substance having flammable or explosive characteristics on the Premises. Items that are prohibited to be brought into the Premises, other than for everyday cooking or the need of an appliance, includes but is not limited to gas (compressed), other than CO2 for sparkling water maker, gasoline, fuel, propane, kerosene, motor oil, fireworks, or any other related content in the form of a liquid, solid, or gas.

WATERBEDS: The Tenant(s) is not permitted to furnish the Premises with waterbeds.

INDEMNIFICATION: The Landlord shall not be liable for any damage or injury to the Tenant(s), or any other person, or to any property, occurring on the Premises, or any part thereof, or in common areas thereof, and the Tenant(s) agrees to hold the Landlord harmless from any claims or damages unless caused solely by the Landlord's negligence.

- It is required that renter's insurance be purchased at the Tenant(s)'s expense and Landlord must be named as **Additional Interests – Residence Premises Endorsement.**
- It is also required that Tenant(s) include liability insurance up to \$100,000 and Landlord must be named as **Additional Insured – Residence Premises Endorsement.**

UNLAWFUL MOVE-OUT AND RELETTING CHARGE:

Tenant responsibility: Tenant will be liable for a reletting charge of \$778 if Tenant: (A) fails to move in, or fails to give written move-out notice as required in this Lease; (B) moves out without paying rent in full for the entire Lease term or renewal period; (C) moves out at Landlord's demand because of Tenant's default; or (D) are judicially evicted. **The reletting charge is not a cancellation fee and does not release you from any other of your obligations under this Lease.**

The reletting charge is neither a Lease cancellation nor a buyout fee. It is liquidated amount covering only part of our damages—for our time, effort, and expense in finding and processing a replacement resident. These damages are uncertain and hard to ascertain—Tenant agrees that the reletting charge is a reasonable estimate of our damages and that the charge is due whether or not our reletting attempts succeed. The reletting charge doesn't release Tenant from continued liability for future or past-due rent; charges for cleaning, repairing,

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repainting, or dealing with unreturned keys or other sums due.

LIABILITY FOR WITHHOLDING LAST MONTH 'S RENT.

The tenant may not withhold payment of any portion of the last month 's rent on grounds that the security deposit is security for unpaid rent.

A tenant who violates this section is presumed to have acted in bad faith. A tenant who in bad faith violates this section is liable to the landlord for an amount equal to three times the rent wrongfully withheld and the landlord 's reasonable attorney 's fees in a suit to recover the rent.

SECURITY DEVICES: *Landlord provides a window latch on each window, a way to view out each exterior door, a keyless bolting device on each exterior door, and either a keyed doorknob lock or a keyed deadbolt lock on one entry door. Keyed locks will be rekeyed after the prior resident moves out. The rekeying will be done either before Tenant moves in or within 7 days after move-in, as required by law. If Landlord fails to do so, Tenant has the right to do so and deduct the reasonable cost from subsequent rent's payment under Texas Property Code sec. 92.165(1).*

COVENANTS: The covenants and conditions herein contained shall apply to and bind the heirs, legal representatives, and assigns of the parties hereto, and all covenants are to be construed as conditions of this Agreement.

NOTICES: Any notice to be sent by the Landlord or the Tenant(s) to each other shall use the following mailing addresses:

Landlord's/Agent's Mailing Address

Rebekah R. Cleckler

16A El Conejo Trail, Wimberley, Texas, 78676

Tenant(s)'s Mailing Address

Jennifer Koch

16B El Conejo Trl, Wimberley, TX 78676

AGENT/MANAGER: The Landlord does not have an Agent or Manager and all contact in regards to any repair, maintenance, or complaint must go through the Landlord through the following contact information:

Landlord's iPhone Number: (907) 306-6081

Email: bekahcleckler@outlook.com

PREMISES DEEMED UNINHABITABLE:

If the Property is deemed uninhabitable due to damage beyond reasonable repair the Tenant(s) will be able to terminate this Agreement by written notice to the Landlord. If said damage was due to the negligence of the Tenant(s), the Tenant(s) shall be liable to the Landlord for all repairs and for the loss of income due to restoring the Premises back to a livable condition in addition to any other losses that can be proved by the Landlord.

RIGHTS TO TERMINATE LEASE:

Tenant(s) may have special statutory rights to terminate the lease early in certain situations involving family violence or a military deployment or transfer in accordance with Section 92.016 of Texas Property Code.

REPAIR REQUESTS: All requests for repairs must be in writing and delivered to Landlord. If Tenant(s) is delinquent in rent at the time a repair notice is given, Landlord is not obligated to make the repair. In the event of an emergency related to the condition of the Property that materially affects the physical health or safety of an ordinary Tenant, Tenant(s) may call Landlord or, if applicable, the property manager. Ordinarily, a repair to the heating and air conditioning system is not an emergency.

If Landlord fails to repair a condition that materially affects the physical health or safety of an ordinary tenant as required by this lease or the Property Code, Tenant(s) may be entitled to exercise remedies under §92.056 and §92.0561 of the Property Code. If Tenant(s) follow the procedures under those sections, the following

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remedies may be available to Tenant(s): (1) terminate the lease and obtain an appropriate refund under §92.056(f); (2) have the condition repaired or remedied according to §92.0561; (3) deduct from the rent the cost of the repair or remedy according to §92.0561; and (4) obtain judicial remedies according to §92.0563. Do not exercise these remedies without consulting an attorney or carefully reviewing the procedures under the applicable sections. The Property Code presumes that 7 days is a reasonable period of time for the Landlord to make a diligent effort to repair a condition unless there are circumstances which establish that a different period of time is appropriate (such as the severity and nature of the condition and the availability of materials, labor, and utilities). Failure to strictly follow the procedures in the applicable sections may cause Tenant to be in default of the lease.

DAMAGES AND REIMBURSEMENT

Tenant must promptly pay or reimburse Landlord for loss, damage, consequential damages, government or HOA fines or charges, or cost of repairs or service on the property at large because of a Lease or rules violation; improper use; negligence; other conduct by Tenant, Tenant invitees, or guests, or any other cause not due to Landlord negligence or fault as allowed by law, except for damages by acts of God to the extent they couldn't be mitigated by Tenant action or inaction.

Damage and Wastewater Stoppage. Unless damage or wastewater stoppage is due to Landlord negligence, Landlord is not liable for—and Tenant must pay for—repairs, replacements, and damage of the following kind if occurring during the Lease term or renewal period: damage to doors, windows or screens; damage from windows or doors being left open, and damage from wastewater stoppages caused by improper objects in lines exclusively serving your Unit.

Landlord may require payment at any time, including advance payment to repair damage

that you're liable for. Delay in demanding sums you owe is not a waiver.

CONTRACTUAL LIEN AND PROPERTY LEFT IN UNIT.

Lien Against Tenant Property Left in Unit.

All property in the Unit (unless exempt under Texas Property Code sec. 54.042) is subject to a contractual lien to secure payment of delinquent rent. For this purpose "Unit" includes the interior living areas and exterior porches.

Removal after Landlord exercises Lien for Rent. If your rent is delinquent, Landlord or Landlord's representative may peacefully enter the Unit, and remove and/or store all property subject to lien.

All property in the Unit is presumed to belong to Tenant unless proved otherwise. After the property is removed, a written notice of entry must be left in a conspicuous place in the Unit—including a list of items removed, the amount of delinquent rent due, and the name, address, and phone number of the person to contact. The notice must also state that the property will be promptly returned when the delinquent rent is fully paid.

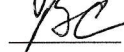
RETENTION OF SECURITY DEPOSIT:

Before returning a security deposit, the landlord may deduct from the deposit damages and charges for which the tenant is legally liable under the lease or as a result of breaching the lease.

Landlord will not retain any portion of a security deposit to cover normal wear and tear.

If Landlord retains all or part of a security deposit under this section, the landlord shall give to the tenant the balance of the security deposit, if any, together with a written description and itemized list of all deductions. The landlord is not required to give the tenant a description and itemized list of deductions if: the tenant owes rent when he surrenders possession of the premises; and

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there is no controversy concerning the amount of rent owed.

SERVICEMEMBERS CIVIL RELIEF ACT:

In the event the Tenant(s) is or hereafter becomes, a member of the United States Armed Forces on extended active duty and hereafter the Tenant(s) receives permanent change of station (PCS) orders to depart from the area where the Premises are located, or is relieved from active duty, retires or separates from the military, is ordered into military housing, or receives deployment orders, then in any of these events, the Tenant may terminate this lease upon giving thirty (30) days written notice to the Landlord. The Tenant shall also provide to the Landlord a copy of the official orders or a letter signed by the Tenant's commanding officer, reflecting the change which warrants termination under this clause. The Tenant will pay prorated rent for any days which he/she occupies the dwelling past the beginning of the rental period.

The damage/security deposit will be promptly returned to Tenant, provided there are no damages to the Premises.

LEAD PAINT: The Premises was constructed before 1978 and therefore the Lead-Based Paint Disclosure that is attached to this Agreement must be authorized.

GOVERNING LAW: This Agreement is to be governed under the laws located in the State of Texas.

ADDITIONAL TERMS AND

CONDITIONS: In addition to the above stated terms and conditions of this Agreement, the Landlord and Tenant agree to the following:

____ Robo-Vacs are not allowed.

____ Pets are not allowed

____ Upon request, adjust volume/install padding to speaker platforms to eliminate bleed-through of music or TV noise or reverberation.

____ TV may not be installed on common wall.

____ Back or front porches may not be used for storage except for a shelving unit may be used on back porch.

____ No surveillance cameras of any kind may be installed that capture any exterior area of the property.

____ The backyard boundary for the Unit will be just past the tree by porch and to just past gate along which a privacy screen fencing can be installed after tenant occupancy begins per tenant's request.

____ Smoking only allowed outside.

____ Septic System refers to "Black Water" wastewater and includes Kitchen and Bathroom sinks, Toilet, Tub/Shower

____ Septic-friendly toilet paper only may be flushed down toilet. NO TAMPONS OR WIPES

____ Avoid excessive grease going down kitchen sink. Avoid pouring milk or vinegar or bleach down sinks. (Only very small amounts when necessary.)

____ DO NOT USE bleach-infused cleaning products except rare use of bleach-aided scrubbing products such as Ajax scouring powder.

____ Always stop washing machine from operating while not on premises.

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ENTIRE AGREEMENT: This Agreement contains all the terms agreed to by the parties relating to its subject matter including any attachments or addendums. This Agreement replaces all previous Agreements, discussions, understandings, and oral agreements. The Landlord and Tenant(s) agree to the terms and conditions and shall be bound until the end of the Lease Term.

The parties have agreed and executed this agreement on September 5, 2025.

LANDLORD(S) SIGNATURE

Landlord's Signature



Rebekah R. Cleckler

TENANT(S) SIGNATURE

Tenant's Signature



Jennifer Koch